REPORTABLE **(29)**

COSMAS NYAMUTSWA
v
CAECELIA NYAMUTSWA

SUPREME COURT OF ZIMBABWE
HARARE: 19 MARCH 2026

A. T. Nobela, for the applicant

Ms *P. Chakasikwa*, for the respondent

IN CHAMBERS

MATHONSI JA:

1. This is an application for condonation, reinstatement and extension of time within which to serve a notice of appeal on the registrar of the High Court.

2. The application is made in terms of r 76 (1)(c) of the Supreme Court Rules, 2025 and was filed on 3 March 2026 after the registrar had notified the parties on 10 February 2026 that the applicant's appeal under case number SC 119/26 was deemed abandoned and dismissed for failure to serve the notice of appeal on the registrar of the High Court.

3. The application is opposed by the respondent who has raised some preliminary objections to the application, which I shall relate to shortly.

4. Briefly, the background is that the parties were married but, at the instance of the respondent who issued divorce summons against the applicant, the High Court delivered judgment on 15 January 2026 in terms of which it granted a decree of divorce and ancillary relief.

5. The applicant was unhappy with the judgment and timeously lodged an appeal to this Court on 5 February 2026 under case number SC 119/26. He failed to serve the notice of appeal on the registrar of the High Court as a result of which the appeal was dismissed by operation of law, as I have already stated.

6. As a result, the applicant filed the present application for condonation, reinstatement and extension of time within which to serve a notice of appeal on the registrar of the High Court. As I have said, the application is purportedly made in terms of r 76 (1)(c). There is a lot that is wrong with this application but what is dispositive is the fact that the application is incompetent given that a wrong procedure has been adopted.

7. The procedure for instituting a valid civil appeal to this Court against a judgment of the High Court is set out in Part VI of the Supreme Court Rules, 2025.

8. In terms of r 44 (2) and (3);

> "(2) The notice of appeal shall be filed and served on a registrar, a registrar of the High Court and the respondent in accordance with rule 45.
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> (3) If the appellant does not serve the notice of appeal in compliance with subrule (2) as read with rule 45, the appeal shall be regarded as abandoned and shall be deemed to have been dismissed."

9. Rule 45 (1) (a) provides:

> "(1) An appellant shall institute an appeal within the following times-
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> (a) By filing and serving a notice of appeal in accordance with subrule (2) of rule 44 within 15 days of the judgment appealed against."

10. Clearly therefore, the process of instituting a valid appeal involves the filing and serving of a notice of appeal on both the registrar of the High Court and the respondent. This is what

the applicant fell foul of. After filing the notice of appeal, he did not serve it as required by the rules. It follows that no valid appeal was instituted. The question which arises therefore is whether there is anything to reinstate as would trigger the application of r 76 (2).

11. This Court has long expressed itself on the consequences of failing to institute a proper appeal. In *Plumed Horse (Pvt) Ltd & Ors* v *Dundurn (Pvt) Ltd & Ors* SC 153/20, while interpreting the effects of the predecessor to rr 44, 45 and 76 (that is the repealed 2018 Rules), the following remarks were made at pp 4-5:

> "In fact I agree with Mr *Nkomo* for the respondent that, where an appeal has not been properly instituted, there cannot be any appeal to reinstate. In those circumstances the proper approach would be to seek condonation and extension of time within which to note a proper appeal.
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> In terms of r 37 (1) every civil appeal shall be instituted in the form of a notice of appeal which complies with the requirements set out therein. Subrule (2) requires the notice of appeal to be served on the registrar as well as the respondents. Therefore, for a valid appeal to exist there must be compliance with the requirements for service of the notice aforesaid. Anything short of that is fatal to the appeal to such an extent that there would be no appeal.
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> The position of this Court has always been that a notice of appeal is only a valid one if it complies with both r 37 and r 38. These rules are an integral part of the process of noting an appeal. When the notice fails to comply with the rules in the process of noting it, that appeal is said to be defective. A defective appeal is a nullity it is taken as though nothing is before the court."

See also *Jensen* v *Acavalos* 1993 (1) ZLR 216 (S) at 220 B-D.

12. It follows that the procedure for reinstatement set out in r 76 (2) is only available where a valid appeal was filed which appeal would, if dismissed under r 76 (1), trigger the remedy of reinstatement. This interpretation accords with the views expressed in *Ringside Enterprises & Ors* v *Zimbabwe Tourism Authority & Anor* 2020 (1) ZLR 1056 (S) at 1057 F, that:

> "The applicant's omission to serve the High Court Registrar with the notice of appeal rendered the appeal void *ab initio*."

13. I conclude therefore that the applicant having failed to serve the notice of appeal on the registrar of the High Court, the purported appeal was rendered void *ab initio*. It cannot possibly be reinstated as no amount of condonation can validate an invalidity. The matter ought to be struck off the roll for the reason that there is no valid application.

14. I mention, for completeness, that there are other defects in the papers before me which cannot be countenanced in documents filed at the highest Court in the land. Firstly, the applicant spelt the name of the respondent, his very own former wife, wrongly in the application. She is cited in the application as "CAECELIA NYAMUTSWA" instead of "CEACILIA NYAMUTSWA."

15. As to how a former husband would get the name of his former wife completely wrong may speak volumes of the nature of the relationship the parties had in their marriage. More importantly though, it is the attitude displayed by the applicant in his answering affidavit in response to the mis-spelling of the name which is unacceptable. Instead of acknowledging the mistake and seeking an amendment, the applicant sought to justify it.

16. Secondly, as I have already said, the application is purportedly made in terms of r 76 (1) (c) of the Court's Rules. That provision reads:

> "(1) Where an appeal or application is –
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> (a) deemed to have lapsed; or
> (b) regarded as abandoned; or
> (c) deemed to have been dismissed in terms of any provision of these rules;
> the registrar shall notify the parties accordingly."

This is merely a directory provision spelling out the fate of an appeal or application and directing the registrar to notify the parties of that fate. It is not a remedy-imposing provision upon which an application can be made.

17. It is r 76 (2) which gives a party whose appeal has been dismissed in terms of r 76 (1) the remedy to approach the Court for relief. It provides:

> "(2) The appellant or applicant, as the case may be, may, within 15 days of receiving any notification by the registrar in terms of subrule (1), apply for reinstatement of the appeal on good cause shown."

So, apart from the applicant having brought a wrong application, he has also cited the wrong rule under which his wrong application is made.

18. It has repeatedly been stated by the courts that when bringing an application, it is important to cite the correct rule under which the application is made. In *Minister of Mines and Mining Development & Anor* v *Fidelity Printers & Refiners (Pvt) Ltd & Anor* CCZ 9/22 at p 13, the Constitutional Court stated:

> "The rules of this Court expressly dictate the procedure to be followed in applications of this nature. The importance of citing the rule on which an application is based was adequately articulated in *Bushu* v *Grain Marketing Board* HH 326/17, wherein the court noted that:
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> > 'However, in practice, any astute legal practitioner making an application in terms of a statutory provision, including a rule of court, is expected to indicate the rule or provision concerned. The need to note the relevant provision of the law under which the application is made, where applicable of course, cannot be over emphasized. The citation of the correct and relevant provision attunes the court to its jurisdiction and the judge or court as the case may be immediately opens up to the provision and, if need be, researches on the provision if it is not one that immediately comes to mind.'
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> It must be emphasized that litigants must proceed in terms of the relevant rule as that is what informs the respondent and the court as to the nature of the application and the relief sought. It is the rule that delineates the processes to be followed by the parties and the time frames demanded for each process."

19. In light of the foregoing authorities, it was extremely naïve of the applicant to glibly state in response to the objection on citation of the wrong rule in his answering affidavit at para 4.1:

> "4.1 This is denied. Despite the existence of an error in citation, the contents of application manifestly show that it is in terms of r 76 (2)."

20. The applicant also raised an objection on the validity of the respondent`s opposing affidavit as being invalid for want of a date on which the Commissioner of Oaths appended her signature on it. What we have is a situation in which, in deposing to the opposing affidavit before a Commissioner of Oaths, the respondent entered, in the space provided, that the affidavit was sworn to at "Harare" on the "9th day of March 2026." She proceeded to sign in the space provided.

21. The manner in which the affidavit is crafted provides for the commissioning date by the Commissioner of Oaths separately and a space for the date in March 2026 to be entered by the Commissioner of Oaths before she signed. Although the Commissioner of Oaths signed in the space provided, she did not enter the date of signing. The applicant relied on the omission to argue that there is no valid opposition and that the matter should be treated as unopposed.

22. There is authority for the proposition that a Commissioner of Oaths before whom an oath is taken is required to endorse the date on which the oath was administered in order to satisfy the court that both the deponent and the Commissioner acted contemporaneously. See *Mandishona* v *Sithole* HH 798/15, a decision endorsed by this Court in *Ariston Management Services (Pvt) Ltd* v *Econet Wireless Zimbabwe Ltd* SC 123/23. I should mention though,

that the *Ariston* judgment was set aside by the Constitutional Court in *Ariston Management Services Ltd* v *Econet Wireless Zimbabwe Ltd & Anor* CCZ 8/24 for different reasons.

23. Whatever the case, having come to the conclusion that the applicant has adopted the wrong procedure of seeking the reinstatement of a nullity, a point raised by myself *mero motu,* the rest of the preliminary issues pale to insignificance, including what is clearly an invalid opposition. I will therefore not deal with the other preliminary point, belatedly taken by Ms *Chakasikwa,* on the failure to cite the relevant rule which was infringed in the draft order, as an application for amendment was made by Mr *Nobela* for the applicant.

24. Regarding the issue of costs, the matter is being disposed of on the basis of a point raised by the Court and not by the respondent. For that reason, I take the view that there should be no order as to costs.

25. In the result, it is ordered that:

    1. The matter is struck off the roll for the reason that there is no valid application.
    2. There is no order as to costs.

Gumbo-Venge Attorneys, applicant's legal practitioners.

Kantor & Immerman, respondent's legal practitioners.